

TENTATIVE RULINGS FOR September 21, 2026
Department R-14
BEFORE THE HONORABLE TONY RAPHAEL
(909) 285-3717

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DAMIAN STARICKA,

V.

**CHINO VALLEY UNIFIED SCHOOL
DISTRICT, *et al.***

CIVRS2510126

RELEVANT FACTUAL/PROCEDURAL BACKGROUND

On November 24, 2025, Plaintiff Damian Staricka (“Plaintiff”) filed a complaint against Defendants Chino Valley Unified School District (“District”) and John Miller (“Miller,” and collectively with District, “Defendants”) alleging causes of action for: (1) Whistleblower Retaliation (Lab. Code, § 1102.5 (Against District Only); and (2) Intentional Infliction of Emotional Distress (“IIED”) (Against Miller Only).

On May 12, 2026, this Court (Hon. Gilbert Ochoa) sustained Defendants’ demurrer to the first cause of action, in part based on the applicable statutory time frame, limiting any cause of action to that accruing six months prior to filing the initial complaint, or January 2, 2025. (May. 12, 2026 Order.) This Court allowed leave to amend and also overruled demurrer to Plaintiff’s IIED claim. On June 11, Plaintiff filed the operative first amended complaint (“FAC”).

Per the FAC, Plaintiff has been a teacher for more than 10 years and been an athletic coach since 1999, coaching football, baseball, and girls’ basketball, including being a special teams coach at Ayala High School in the District, while still teaching at Chino High School (“CHS”). (FAC ¶¶

12-13.) In Spring 2018, when Plaintiff was the head coach for football at CHS, Miller became principal of CHS. (FAC ¶14.) During their very first interaction, Miller said to Plaintiff “I came here to fire you,” and Plaintiff was indeed fired weeks later. (*Ibid.*)

Beginning January 2025, Plaintiff alleges a scheme orchestrated by Miller to make sure that Plaintiff could not advance in his career that included: 1) Miller informing other coaches they could not hire Plaintiff; 2) engaging in a pattern of exclusion; 3) removing from the curriculum classes Plaintiff had previously been hired to teach; 4) require him to take classes and achieve credentials previously not required; and 5) forcing Plaintiff to sign a contract under duress. (FAC ¶¶17-24.) Plaintiff contends these actions were taken in retaliation for filing grievances and otherwise reporting Miller’s behavior. (*Ibid.*)

On March 27, 2026, District filed the pending demurrer against the first cause of action and Miller filed a motion to strike, seeking to strike references to punitive damages from the FAC.

I. Legal Standard.

a. Demurrer - Generally

A demurrer challenges only the legal sufficiency of the complaint, not the truth of its factual allegations or the plaintiff’s ability to prove those allegations. (*Picton v. Anderson Union High Sch. Dist.* (1996) 50 Cal.App.4th 726, 732.) The court must treat as true all of the complaint’s material factual allegations, but not contentions, deductions or conclusions of fact or law, and may consider exhibits attached to the complaint. (*Id.* at 732-33; *Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, 924.) When reviewing a demurrer, a court should interpret the complaint reasonably, reading it as a whole and considering all parts in their context. (*Hale v. Sharp Healthcare* (2010) 183 Cal.App.4th 1373, 1386, citing *Stearn v. County of San Bernardino* (2009) 170 Cal.App.4th 434, 439.) The Code of Civil Procedure specifically authorizes courts to

consider, as a ground for demurrer, any matter which the court must or may judicially notice under Evidence Code, sections 451 or 452. (Code of Civil Procedure § 430.30, subd. (a).)

A general demurrer challenges a complaint for failure to state a cause of action under Code of Civil Procedure section 430.10, subdivision (e). It is granted where the facts alleged on the face of the complaint fail to state a valid claim under any possible legal theory entitling the plaintiff to relief against the demurring defendant. (*Sheehan v. San Francisco 49ers, Ltd.* (2009) 45 Cal.4th 992, 998.) The plaintiff may be mistaken as to the nature of the case or the legal theory on which he or she can prevail, but if the essential facts of some valid cause of action are alleged, the complaint is good against a general demurrer. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38-39; *see also Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566, 572.)

Appellate courts will apply “a de novo standard in reviewing the court’s ruling sustaining the demurrer.” (*Soto v. Motel 6 Operating, L.P.* (2016) 4 Cal.App.5th 385, 389.) If a complaint fails to state a cause of action, and demurrer is sustained, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318). “Generally, it is an abuse of discretion to sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment.” (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) “Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227). “If the plaintiff has not had an opportunity to amend the complaint in response to the demurrer, leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment.” (*City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747.)

b. Motion to Strike.

A motion to strike can be used to reach defects or objections to pleadings that are not challengeable by demurrer. A motion to strike can be used to attack the entire pleading, or any part thereof, i.e., even single words or phrases. (*Warren v. Atchison, Topeka & Santa Fe Ry. Co.* (1971) 19 Cal.App.3d 24, 40.) The motion can be used to strike out any irrelevant, false, or improper matters inserted in any pleading or may strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., §§ 435-436.) “Irrelevant matter” includes a demand for judgment requesting relief not supported by the allegations or an allegation that is neither pertinent to nor supported by an otherwise sufficient claim. (Code Civ. Proc., § 431.10, subd. (b)(2)-(3).)

Similar to a demurrer, the grounds for the motion must appear on the face of the pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437.) Although a motion to strike can reach conclusory allegations, such language cannot be stricken where the complaint contains sufficient facts to support such an allegation. (*Perkins v. Sup. Ct. (General Tel. Directory Co.)* (1981) 117 Cal.App.3d 1, 6.) “The distinction between conclusions of law and ultimate facts is not at all clear and involves at most a matter of degree.” (*Ibid.*) “What is important is that the complaint as a whole contain sufficient facts to apprise the defendant of the basis upon which the plaintiff is seeking relief.” (*Ibid.*)

A “trial court’s ruling on a motion to strike a pleading under Code of Civil Procedure section 436 generally is reviewed for abuse of discretion.” (*Cal-Western Business Services, Inc. v. Corning Capital Group* (2013) 221 Cal.App.4th 304, 309.)

i. Meet and Confer Requirement for Demurrers and Motions to Strike.

Under Code of Civil Procedure sections 430.41 and section 435.5, before filing a demurrer or motion to strike, the filing party is required to meet and confer at least five days prior to the

filing, either by telephone, videoconference, or in person, with the opposing party for the purpose of determining whether an agreement can be reached to resolve the objections to the pleading. (Code Civ. Proc., §§ 430.41, subd. (a)(2); 435.5, subd. (a)(2).) The filing party must then file a declaration, along with the demurrer and motion to strike, stating either the means of the meet and confer or that the other party failed to respond or confer in good faith. (Code Civ. Proc., §§ 430.41, subd. (a)(3); 435.5, subd. (a)(3).)

I. Analysis.

a. Defendants Have Fulfilled the Meet and Confer Requirement.

Along with their motions, Defendants filed the declaration of counsel, who attests to sending Plaintiff a meet and confer letter after reviewing the FAC, corresponding via email with Plaintiff's counsel, and then also communicating via telephone. (G. Fozi Decl. ¶¶4-5.) These efforts fulfill the statutory requirements. (Code Civ. Proc., §§ 430.41, subd. (a); 435.5, subd. (a).)

b. Demurrer Against Cause of Action 1: Whistleblower Retaliation.

District puts forward two arguments on demurrer: first, that Plaintiff's amendments represent a sham pleading because he has taken out references to incidents prior to January 2026, and replaced them with those in the permitted statutory timeline and, second, that, even if not a sham pleading, Plaintiff has failed to allege a protected activity, as is required for a whistleblower retaliation claim.

i. Sham Pleading.

“Under the sham-pleading doctrine, admissions in an original complaint that has been superseded by an amended pleading remain within the court's cognizance and the alteration of such statements by amendment designed to conceal fundamental vulnerabilities in a plaintiff's case will not be accepted.” (*Lockton v. O'Rourke* (2010) 184 Cal.App.4th 1051, 1061.) “The well-established rule is that a proposed amendment which contradicts allegations in an earlier pleading

will not be allowed in the absence of ‘very satisfactory evidence’ upon which it is ‘clearly shown that the earlier pleading is the result of mistake or inadvertence.’” (*American Advertising & Sales Co. v. Mid-Western Transport* (1984) 152 Cal.App.3d 875, 879, quoting *Tognazzi v. Wilhelm* (1936) 6 Cal.2d 123, 127.) Stated another way, “[u]nder the sham pleading doctrine, plaintiffs are precluded from amending complaints to omit harmful allegations, without explanation, from previous complaints to avoid attacks raised in demurrers or motions for summary judgment.” (*Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408, 425.)

Here, although the FAC omits previous allegations dating back to 2021, Plaintiff does not now allege those things did not happen, he just bases his allegations on conduct within the permissible time period. As a matter of law, Plaintiff is barred from basing any claims on any incidents occurring prior to January 2, 2025. (May 12, 2025 Order.) However, the alleged harm in 2021 and the alleged harm beginning in January 2025 are not mutually exclusive. Indeed, nothing in the FAC contradicts the previous pleading. The FAC simply expands on the allegations that fit within the relevant statute of limitations.

As such, the Court overrules District’s sham pleading argument.

ii. Protected Activity.

Plaintiff brings this claim under Labor Code section 1102.5. “Labor Code section 1102.5 prohibits an employer from preventing an employee's disclosure of information to a governmental agency. It is a whistleblower statute, the purpose of which is to encourage workplace whistleblowers to report unlawful acts without fearing retaliation.” (*Scheer v. Regents of University of California* (2022) 76 Cal.App.5th 904, 913.)

“To establish a violation, a plaintiff must make a prima facie case of retaliation. To do that, plaintiff must show he engaged in protected activity, his employer subjected him to an adverse

employment action, and the existence of a causal link between the two.” (*Hawkins v. City of Los Angeles* (2019) 40 Cal.App.5th 384, 392-393.) Plaintiff clearly alleges the adverse employment actions (losing coaching and teaching opportunities) and the causal link between the two, but District argues Plaintiff has not sufficiently alleged a protective activity.

Subdivision (b) of section 1102.5 states, in part, that an employer “shall not retaliate against an employee for disclosing information, or because the employer believes that the employee disclosed or may disclose information, to a ... to a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance.” (Cal. Lab. Code § 1102.5, subd. (b).) However, discussion of “*internal personnel matters* involving a supervisor and her employee, rather than the disclosure of a legal violation,” does not constitute a protected activity. (*Patten v. Grant Joint Union High School Dist.* (2005) 134 Cal.App.4th 1378, 1385.)

Here, Plaintiff alleges he reported conduct that he believed to be illegal (i.e. Miller’s conduct), but only alleges he reported it to “District officials.” (FAC ¶17.)

As such, although Plaintiff’s allegations are vague because he does not name the person or title to whom he reported.

“To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) Further, trial courts “do not decide on demurrer whether plaintiffs will be able to prove their claims, but only whether they are properly pleaded.” (*Berger v. Varum* (2019) 35 Cal.App.5th 1013, 1023.) Lastly, “[a] complaint’s allegations are construed liberally in favor of the pleader.” (*Ferrick v. Santa Clara University* (2014) 231 Cal.App.4th 1337, 1341.)

The Court finds that more details should be given as to who Plaintiff reported the alleged misconduct to. Thus, the Court sustains the demurrer, allowing one more opportunity to amend.

c. Motions to Strike.

Miller seeks to strike all provisions of the FAC that refer to punitive damages.

“In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.” (*Clauson v. Superior Court* (1998) 67 Cal. App. 4th 1253, 1255.) “In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (*Ibid.*) To state a *prima facie* claim for punitive damages, a plaintiff must allege the elements set forth in the punitive damages statute, Civil Code section 3294. (*College Hosp., Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721.) Per Civil Code section 3294, a plaintiff must allege that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) As set forth in the Civil Code,

(1) “Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) “Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) “Fraud” means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, § 3294, subd. (c)(1)-(3).) The term “despicable,” though not defined in the statute, is applicable to circumstances that are base, vile, or contemptible. (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.) “When the plaintiff alleges an intentional wrong, a prayer for exemplary damage may be supported by pleading that the wrong was committed willfully or with a design to injure.” (*Smith v. Superior Court* (1992) 10 Cal. App. 4th 1033, 1041.)

Plaintiff's prayer for punitive damages is grounded in his allegations regarding the IIED claim, and this Court previously overruled Miller's demurrer to the IIED claim based on Miller's argument regarding worker's compensation. As such, it appears Miller is seeking to get another bite at the apple, by arguing that Plaintiff's IIED claim should fail because the underlying conduct is not extreme or outrageous.

But again, the demurrer to the IIED claim was overruled. In doing so, this Court implicitly agreed that Plaintiff properly plead "(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff suffered severe emotional distress; and (3) the defendant's extreme and outrageous conduct was the actual and proximate cause of the severe emotional distress." (*Crouch v. Trinity Christian Center of Santa Ana, Inc.* (2019) 39 Cal.App.5th 995, 1007.) If a plaintiff has properly plead IIED, then it follows that the elements for punitive damages has also been met, given that conduct alleged to be extreme and outrageous in an IIED context would also constitute conduct done with willful disregard in the punitive damages context.

As such, the Court denies the motion to strike as to punitive damages.

CONCLUSION

Based on the foregoing, the Court rules as follows:

- 1) Finds the Defendants adequately met and conferred;
- 2) Sustains the District's demurrer, with one more leave to amend; and
- 3) Denies Miller's motion to strike, given it is based on the same allegations underlying the IIED claim which this Court previously upheld against Miller's demurrer.

Counsel for the District is ordered to provide notice.

***KENNETH OGBOGU, individual and dba
BRITEWAY INVESTMENTS***

v.

BEDE NWAOGWUGWU

CIVRS2508838

Procedural/Factual Background

On October 13, 2025, Plaintiff Kenneth Ogbogu, individual and dba Briteway Investments filed a Complaint against Defendant Bede Nwaogwugwu and Does 1-25 alleging four causes of action for 1) Breach of Contract, 2) Intentional Misrepresentation, 3) Negligent Misrepresentation, and 4) Quantum Meruit.

Plaintiff alleges that on August 5, 2025, Defendant entered into a residential listing agreement (Listing Agreement) with Plaintiff. Under the terms of the Listing Agreement, Plaintiff was granted the exclusive and irrevocable right to sell Defendant's property located at 3695 Terrace Drive in Chino Hills. Defendant was also required to pay a 4% commission. Plaintiff marketed the Property and found a ready, willing, and able buyer (Lawrence Tseng) who agreed to purchase the Property for \$880,000. Defendant and Tseng entered into a California Residential Purchase Agreement on August 11, 2025. The closing date for escrow was August 29, 2025. It is alleged, however, that Defendant failed to complete the transaction on the scheduled closing date and instead contacted the buyer to sell the property directly to him. As of

September 4, 2025, escrow still had not closed, and Plaintiff states he is damaged in the amount of the commission, or \$35,200.

On July 1, 2026, Defendant and Cross-Complainant filed a Cross-Complaint against Plaintiff/Cross-Defendant alleging four causes of action for 1) Fraud, 2) Harassment, 3) Defamation, and 4) Intentional Infliction of Emotional Distress (IIED).

Cross-Complainant alleges that he entered into the Listing Agreement while experiencing profound personal hardship. His wife had recently passed away, and he was attempting to sell the Property, in part, to address funeral expenses and urgent financial obligations arising from her death, downsizing, to satisfy outstanding personal obligations owed to friends and family, and provide housing stability for Daniel Nwaogwugwu, his son.

On the scheduled closing date of August 29, 2025, Cross-Complainant's execution of escrow documents was delayed because he was attending to his wife's funeral arrangements. It is alleged the Cross-Defendant was not understanding about this and stated, "All I want is my commission." It is also alleged that Cross-Defendant breached his fiduciary duties as a listing broker and was the substantial cause of the transaction's failure.

It is further alleged that after the transaction failed and the Listing Agreement expired on September 5, 2025, Cross-Defendant had no continuing authority to act on Cross-Complainant's behalf. But Cross-Complainant alleges that Cross-Defendant continued to misrepresent to third parties that he had authority and interfered with Cross-Complainant's efforts to sell the Property through a new broker. It is also alleged that he then initiated meritless mediation and arbitration proceedings.

It is also alleged that Cross-Defendant's conduct, including filing and prosecuting this lawsuit as well as making false and defamatory allegations has caused Cross-Complainant

substantial emotional distress, financial hardship, and reputational harm. It is alleged that Cross-Defendant's allegations in the Complaint that Cross-Complainant "never intended to pay any broker's commission," deliberately delayed and sabotaged the transaction, and acted with fraudulent intent, are false, made without reasonable grounds, and have been published in a public court record, causing damage to Cross-Complainant's reputation.

On July 17, 2026, Plaintiff/Cross-Defendant filed the instant Special Motion to Strike Cross-Complaint.

On September 8, 2026, Defendant/Cross-Complainant filed an Opposition and the declarations of Bede Nwaogwugwu and Daniel Nwaogwugwu as well as an Exhibit list and Compendium of Exhibits.

On September 14, 2026, Plaintiff/Cross-Defendant filed a Reply.

Discussion

Statement of the Law. The anti-SLAPP statute provides a cause of action arising from any act by a person in furtherance of his constitutionally (U.S. or Cal.) protected right of petition or free speech that is connected with a public issue shall be stricken unless there is a probability that the plaintiff will prevail on the claim. (Code Civ. Proc., § 425.16, subd. (b)(1).) Cause of action is used interchangeably with a complaint, claim, action, and the phrase "the facts upon which the liability or defense is based;" thus a special motion to strike can be addressed to an individual cause of action, multiple causes of actions, or the entire complaint/cross-complaint. (*Thomas v. Quintero* (2005) 126 Cal.App.4th 635, 646; *Shekhter v. Financial Indemnity Co.* (2001) 89 Cal.App.4th 141, 150.)

Like a Section 436 motion to strike, the Court can further eliminate only the protected activity while allowing the unprotected activity to proceed forward. (*Baral v. Schnitt* (2016) 1

Cal.5th 376, 381-82, 392-93 (*Baral*) [“[T]he Legislature’s choice of the term ‘motion to strike’ reflects the understanding that an anti-SLAPP motion, like a conventional motion to strike, may be used to attack parts of a count as pleaded.”].) Nevertheless, allegations of protected activity that merely provide context, without supporting a claim for recovery, cannot be stricken under the anti-SLAPP statute. (*Id.* at p. 394.)

The primary purpose of Code of Civil Procedure section 425.16 is to deter frivolous and improperly motivated lawsuits arising from the exercise of constitutional rights. (*Chavez v. Mendoza* (2001) 94 Cal.App.4th 1083, 1089.) The statute is to be construed broadly. (Code Civ. Proc., § 425.16, subd (a); *Briggs v. Eden Counsel for Hope and Opportunity* (1999) 19 Cal.4th 1106, 1119-1121.)

The procedure for assessing an anti-SLAPP motion is as follows: (1) the defendant bears the burden of demonstrating and establishing the challenged cause of action is one arising from protected activity, and (2) if said showing is made, the burden shifts to the plaintiff to establish his probability of prevailing on the claim. (*HMS Capital, Inc. v. Lawyers Title Company* (2004) 118 Cal.App.4th 204, 211.)

A defendant meets its initial burden by demonstrating the act underlying the plaintiff’s cause of action fits one of the categories spelled out in section 425.16 subd. (e) of the Code of Civil Procedure. (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 88.) The “focus is not the form of the plaintiff’s cause of action but, rather, the defendant’s *activity* that gives rise to his or her asserted liability – and whether the activity constitutes protected speech or petitioning.” (*Id.* at p. 92, emphasis in the original.)

Code of Civil Procedure section 425.16, subd. (e), defines an act in furtherance of a person’s right of petition or free speech as including:

- (1) Any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law;
- (2) Any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law;
- (3) Any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest; or
- (4) Any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.

If the burden shifts to the plaintiff, then its burden is to demonstrate the complaint is both legally sufficient and supported by a sufficient *prima facie* showing of facts to sustain a favorable judgment. (*Matson v. Dvorak* (1995) 40 Cal.App.4th 539, 548.) “Legally sufficient” means the cause of action would satisfy a demurrer. (*Dowling v. Zimmerman* (2001) 85 Cal.App.4th 1400, 1421.)

Anti-SLAPP motions must be supported and opposed by declarations stating facts upon which the liability or defense is based. (Code Civ. Proc., § 425.16, subd. (b)(2).) Thus, declarations may not be based upon “information and belief” (*Evans v. Unkow* (1995) 38 Cal.App.4th 1490, 1497-98), and documents without the proper foundation are not to be considered (*Tuchscher Development Enterprises, Inc. v. San Diego Unified Port Dist.* (2003) 106 Cal.App.4th 1219, 1238.)

Finally, a prevailing defendant is entitled to its attorney fees and costs. (Code Civ. Proc., § 425.16, subd. (c); *Pfeiffer Venice Properties v. Barnard* (2002) 101 Cal.App.4th 211, 215.)

Analysis. Plaintiff/Cross-Defendant (hereinafter, Cross-Defendant) moves to strike the entire Cross-Complaint on the grounds that each cause of action arises from protected activity under Code of Civil Procedure section 425.16, subdivision (e) as they involve 1) statements

made in connection with judicial proceedings, 2) statements made in connection with issues under consideration by a judicial body, and 3) conduct in furtherance of the constitutional right of petition. Cross-Defendant also argues that Defendant/Cross-Complainant (hereinafter, Cross-Complainant) cannot establish a probability of prevailing on the merits.

In the Opposition, it is noted that Cross-Defendant seeks an order striking the entire Cross-Complaint. Notably, Cross-Complainant argues the litigation involves allegations of prelitigation conduct that are not protected by the statute. As such, Cross-Complainant argues the Court should not strike the Cross-Complaint in its entirety and instead limit its analysis to the extent particular claims rest upon protected activity.

Prong 1. Does the alleged wrongful conduct involve protected activity?

1. Fraud.¹ Cross-Defendant argues the Fraud claim is entirely predicated on allegations that he made false representations regarding his intent to perform his duties as broker, abandoned the transaction, and thereafter filed the instant lawsuit making false allegations against Cross-Complainant. Thus, he claims it arises from the filing and prosecution of this lawsuit.

Here, the Cross-Complainant's allegations are as follows: "Cross-Defendant made material false representations of fact to Cross-Complainant during the listing and transaction period. Specifically, Cross-Defendant represented to Cross-Complainant that he would faithfully perform his duties as a listing broker and act in Cross-Complainant's best interests, including properly representing Cross-Complainant throughout the transaction, cooperating with all parties, and fulfilling his fiduciary obligations." (X-Compl. ¶ 16.) And: "Additionally, after the Listing Agreement expired, Cross-Defendant made false representations to third parties,

¹ "The essential elements of fraud, generally, are (1) a misrepresentation; (2) knowledge of falsity; (3) intent to induce reliance; (4) justifiable reliance; and (5) resulting damage." (*City of Industry v. City of Fillmore* (2011) 198 Cal.App.4th 191, 211.)

including escrow officers, title companies, and other brokers, falsely claiming authority to act on Cross-Complainant's behalf and misrepresenting the status of the transaction and the property.” (X-Compl. ¶ 23.)

Cross-Defendant argues, broadly, without citation to the Cross-Complaint, that because the general allegations include that Cross-Defendant initiated meritless mediation and arbitration proceedings and thereafter filed this lawsuit, that these statements are communications made in connection with judicial proceedings and in anticipation of litigation under Code of Civil Procedure section 425.16, subds. (e)(1) and (e)(2).

Here, Cross-Defendant has not met his initial burden in demonstrating that the gravamen of the claim here involves protected activity. The allegation is, essentially, that Cross-Defendant fraudulently breached his fiduciary duties. The basis of that allegation includes prelitigation statements made to Cross-Complainant himself. In addition, it is alleged that Cross-Defendant continued to make misrepresentations after the Listing Agreement expired to other individuals. Cross-Defendant has not provided any legal authority to support a finding that this is protected activity or qualifies as statements made in furtherance of litigation.

For example, “[c]ases applying the litigation privilege have held that “if the statement is made with *a good faith belief in a legally viable claim* and in serious contemplation of litigation, then the statement is sufficiently connected to litigation and will be protected by the litigation privilege. [Citation.]”” (*Bailey v. Brewer* (2011) 197 Cal.App.4th 781, 790, emphasis in the original.) Here, Cross-Defendant has made no showing or explained how each of the allegations would qualify beyond a conclusory statement that they were made in anticipation of litigation. This is insufficient. “The defendant’s burden is to identify what acts each challenged claim rests on and to show how those acts are protected under a statutorily defined category of protected

activity.’” (*Medallion Film LLC v. Loeb & Loeb LLP* (2024) 100 Cal.App.5th 1272, 1284, citing *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009.)

Cross-Defendant only highlights other general allegations in the Cross-Complaint to illustrate that point. Instead, by mischaracterizing the allegations pertaining to this particular claim, the argument presented does not address the gravamen of the claim.

The principal thrust or gravamen² of the complaint’s causes of action determines whether Code of Civil Procedure section 425.16 applies. (*Renewable Resources Coalition, Inc. v. Pebble Mines Corporation* (2013) 218 Cal.App.4th 384, 395.) The Court asks, “whether the defendants’ ... act underlying the plaintiff’s ... cause of action was an act by the defendants in furtherance of their right of petition or free speech.” (*Id.* at pp. 394-95.) The focus is on the allegedly wrongful and injury-producing conduct that provides the foundation for the claim, and not the damages sought. (*Ibid.*) In determining if the gravamen of the claim arises out of protective speech, the court should consider the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based. (*Seltzer v. Barnes* (2010) 182 Cal.App.4th 953, 962.) The motion lacks such analysis, nor are there any affidavits in support demonstrating that this conduct is protected. Because the initial burden is unmet here, the Court does not proceed to prong two on this cause of action.

2. Harassment. Cross-Complainant’s second cause of action is based on Code of Civil Procedure section 527.6, subdivision (b)(3). “The statute was designed to provide a quick and simple procedure by which this type of wholly unjustifiable conduct, having no proper purpose, could be enjoined. The statute is limited to protecting only those who have suffered “substantial

² Gravamen means the “acts on which liability is based.” (*Renewable Resources Coalition v. Pebble Mines* (2013) 218 Cal.App.4th 384, 396.)

emotional distress” caused by conduct “which serves no legitimate purpose.”” (*Byers v. Cathcart* (1997) 57 Cal.App.4th 805, 811.)

It is alleged that Cross-Defendant harassed Cross-Complainant by engaging in a course of conduct including but not limited to: (a) using profane, abusive, and degrading language directed at Cross-Complainant’s attorney and representative, Lottie Cohen, Esq.; (b) abruptly abandoning the transaction and threatening to take no further action unless paid his commission; (c) continuing to represent himself as Cross Complainant’s broker after the Listing Agreement expired; (d) contacting escrow companies, title companies, and other brokers to interfere with Cross-Complainant’s subsequent efforts to sell his property; and (e) initiating meritless legal proceedings while simultaneously refusing to engage in the mediation contemplated by the Listing Agreement. (See X-Compl. ¶ 28.)

Cross-Defendant argues again, broadly, that each of these alleged acts are directly related to the contractual dispute and therefore made in connection with legal proceedings or pending litigation. It is unclear how the profanity to another party’s attorney is protected, nor is it clear how abandoning a fiduciary is protected. Additionally, there is an allegation of fraud in this claim as well, and an interference allegation that is not addressed by Cross-Defendant. The motion merely claims these are statements made in connection with pending litigation. As above, no analysis or legal authority is cited demonstrating this to be the case.

While it is clear that a portion of this claim would be protected activity, it is equally clear this is a mixed cause of action. But Cross-Defendant here moved broadly to strike the entire pleading and simply argues that each cause of action arises from protected activity in a conclusory fashion.

The court's analysis in *Littlefield v. Littlefield* (2024) 106 Cal.App.5th 815 (*Littlefield*) is particularly informative here, and it is relied upon by Cross-Complainant in the Opposition.

As here, in *Littlefield*, the moving party moved to strike the entire petition altogether. The court stated: "Notwithstanding the diverse range of allegations and requests for relief, appellants moved to strike the petition altogether, or alternatively—although it is not in any meaningful sense an "alternative"—every cause of action in its entirety. In an understated concession relegated to a footnote of their trial court briefing, appellants did acknowledge that "not everything in the Petition involves protected activity." Citing *Haight Ashbury Free Clinics, Inc. v. Happening House Ventures* (2010) 184 Cal.App.4th 1539, 1551, 110 Cal.Rptr.3d 129, however, they contended that a "mixed" cause of action is subject to an anti-SLAPP motion as long as at least one of the underlying acts is protected conduct. As appellants should have known, the law had evolved beyond *Haight Ashbury* long before they filed their motion." (*Id.* at p. 825.)

The *Littlefield* court continues: "In *Baral v. Schnitt* (2016) 1 Cal.5th 376, 394–396, 205 Cal.Rptr.3d 475, 376 P.3d 604, the California Supreme Court held that an allegation-by-allegation approach is necessary in cases involving mixed causes of action. "At the first step, the moving defendant bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them." (*Id.* at p. 396, 205 Cal.Rptr.3d 475, 376 P.3d 604.) In *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 281 Cal.Rptr.3d 678, 491 P.3d 1058 (*Bonni*), the court addressed the proper approach when a single cause of action rests on multiple factual bases, some of which constitute protected activity and some of which do not, and the motion seeks to strike the entire cause of action. The court wrote: "[T]o the extent [plaintiff] has alleged various acts as a basis for relief and not merely as background, each act or set of acts must be

analyzed separately under the usual two-step anti-SLAPP framework. The [defendants] bear the burden of showing that each allegation supporting [plaintiff's] claim of recovery is one that rests on protected activity. If the [defendants] carry that burden, [plaintiff] will then need to demonstrate some merit to his claim that those protected acts were taken for impermissible retaliatory reasons; if he cannot, those particular allegations will be stricken. Conversely, to the extent any acts are unprotected, the claims based on those acts will survive.” (*Id.* at p. 1012, 281 Cal.Rptr.3d 678, 491 P.3d 1058.) Appellants’ motion, however, did not identify any “particular allegations” of protected activity that they contended should be stricken. And since they did not show that the petition or any entire cause of action was based solely on protected activity, they did not show that the court could properly strike the petition or all of its causes of action—the only relief they sought.” (*Id.* at pp. 825-826.)

The circumstances described in *Littlefield* are directly on point with respect to the moving papers herein. This cause of action includes mixed allegations where although one allegation would clearly qualify as protected activity, Cross-Defendant did not demonstrate that all of the allegations fall under the statute as protected activity or put another way, that the entire cause of action was based solely on protected activity. As such, he fails to meet his initial burden again.

3. Defamation.³ Again, here, Cross-Defendant argues the defamatory statements were made as prelitigation communications and therefore in anticipation of litigation and are thus protected. The allegations are as follows: “Cross-Defendant has made, and continues to make, false and defamatory statements of fact about Cross-Complainant, both in published court filings and to third parties. In particular, Cross-Defendant falsely alleged in his publicly filed Complaint

³ “To prove defamation, a plaintiff must establish ““(a) a publication that is (b) false, (c) defamatory, and (d) unprivileged, and that (e) has a natural tendency to injure or that causes special damage.”” (*Abir Cohen Treyzon Salo, LLP*, (2019) 40 Cal.App.5th 882, 889.)

that Cross-Complainant: (a) “never intended to pay any broker’s commission”; (b) deliberately delayed the transaction to cause the listing agreement to expire so he could sell the property directly to the buyer without paying commission; (c) acted in a fraudulent and deceptive manner; and (d) engaged in intentional misrepresentation.”

The Cross-Complaint also acknowledges that these statements may be subject to a litigation privilege but the pleading continues: “However, Cross-Defendant’s defamatory statements have also been published independently to third parties outside of any judicial proceeding, including to escrow companies, title companies, other real estate brokers, and prospective buyers, in communications that bear no logical relation to this litigation and were not made to achieve the objects of this action. Such extrajudicial publications fall outside the scope of the privilege.” (X-Compl. ¶ 40.)

With respect to this, Cross-Defendant argues again that these statements are made in connection with the underlying transaction and anticipated or contemplated litigation. However, here again, Cross-Defendant argues in broad terms and does not identify which allegations fall under the statute and which do not. Where the claim is mixed, as demonstrated above, the initial burden is unmet where this is not provided. Though with respect to this cause of action, Cross-Defendant at least addresses both allegations in a superficial way. While it is also clear that the first allegation of defamatory statements made in court filings would fall under the statute, Cross-Defendant merely claims the second also consists of statements made with respect to the transaction (but does not state how that falls under the statute) and claims it also concerns statements made in anticipation of litigation. However, the second allegation is more nuanced than that. It provides an exemplary list of third parties to whom statements are alleged to have been made, and nowhere does Cross-Defendant explain how statements to those parties would be

protected or are statements made in anticipation of litigation. Ultimately, any time a claim includes mixed allegations in the Cross-Complaint, Cross-Defendant simply argues that the other allegation is made in anticipation of litigation but foregoes any legal analysis or citation to any legal authority establishing that fact. Ultimately, again in light of this, the initial burden is unmet.

4. IIED.⁴ Cross-Defendant argues the fourth cause of action arises from protected litigation conduct.

The Cross-Complaint alleges the following: “Cross-Defendant directed profane and abusive language at Cross Complainant’s attorney while Cross-Complainant was attending to the funeral of his recently deceased wife. Cross-Defendant abandoned his duties as a fiduciary at the worst possible moment, declared he was only concerned with his commission, and then embarked on a campaign of harassment, interference, and meritless litigation against Cross-Complainant during an already devastating period in Cross-Complainant’s life.” (X-Compl. ¶ 45.)

Additionally, the allegations are further detailed as such: “Cross-Defendant intended to cause, or acted with reckless disregard of the probability of causing, severe emotional distress to Cross-Complainant by: abandoning Cross Complainant during a critical moment in the transaction while Cross-Complainant was in mourning; using profane and degrading language toward Cross-Complainant’s representative; filing a Complaint making false and inflammatory allegations of fraud and deliberate deception; obtaining a Temporary Restraining Order based on

⁴ To state an IIED claim, one must plead, (1) outrageous conduct by the defendant, (2) intentional or reckless causing of emotional distress, (3) severe emotional distress, and (4) causation. (*Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228, 1259.) Outrageous conduct is conduct that is so extreme it exceeds all bounds that are usually tolerated in a civilized community, beyond all possible bounds of decency, and regarded as atrocious. (*Hughes v. Pair* (2009) 46 Cal. 4th 1035, 1050-51; *Cochran v. Cochran* (1998) 65 Cal.App.4th 488, 496.) Severe emotional distress consists of fright, grief, shame, humiliation, embarrassment, anger, chagrin, disappointment, or worry. (*Wong v. Jing* (2010) 189 Cal.App.4th 1354, 1376.)

meritless claims that Cross-Complainant intended to flee the country; and continuing to prosecute this action despite knowledge that the transaction failed due to causes other than Cross-Complainant's wrongdoing." (§ 48.)

As above, Cross-Defendant did not address each of the underlying allegations supporting this claim and merely summarizes the claim as an IIED claim based on the initiation and maintaining of judicial proceedings. The remaining allegations are entirely overlooked. Again, as a mixed cause of action, where Cross-Defendant moved to strike the entire complaint, this approach fails to meet the initial burden required.

In sum, where Cross-Defendant sought to strike the entire Cross-Complaint and did not meet his burden as to any cause of action in demonstrating all of the alleged wrongful conduct involves protected activity, his initial burden is unmet, and the Court does not proceed to prong two. As such, the Court DENIES the motion.

Of note, the Reply refers to a demurrer but there is no separately filed demurrer on record. Additionally, it appears in the Reply that for the first time Cross-Defendant is suggesting the Court strike the specific allegations that would fall under protected activity. As noted above, this was not the noticed request and Cross-Defendant, as in *Littlefield*, supra, 106 Cal.App.5th 815, "did not identify any "particular allegations" of protected activity that they contended should be stricken." (*Id.* at pp. 825-826.) The circumstances described in *Littlefield* are directly on point with respect to the moving papers herein.

CONCLUSION

Based on the foregoing, the Court DENIES the motion as Cross-Defendant did not meet his initial burden.

Counsel for the moving party is ordered to provide notice.